

Harsh Gaurav Saxena vs State Of Karnataka on 4 December, 2023

Author: Hemant Chandangoudar

Bench: Hemant Chandangoudar

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NC: 2023:KHC:44033
CRL.P No. 6389 of 2023
C/W CRL.P No. 3712 of 2022

IN THE HIGH COURT OF KARNATAKA AT BENGALURU
DATED THIS THE 4TH DAY OF DECEMBER, 2023
BEFORE
THE HON'BLE MR JUSTICE HEMANT CHANDANGOUDAR
CRIMINAL PETITION NO. 6389 OF 2023
C/W
CRIMINAL PETITION NO. 3712 OF 2022

IN CRIMINAL PETITION NO. 6389 OF 2023:
BETWEEN:

HARSH GAURAV SAXENA
AGED ABOUT 39 YEARS,
S/O LATE AJAY PRAKASH,
S.R. MANOR APARTMENT FLAT NO.301,
3RD FLOOR BUILDING-74, 14TH CROSS ROAD,
TENDER CHICKEN OUTLET,
NAGAVARAPALYA MAIN ROAD,
C V RAMAN NAGAR, BANGALORE-560 093.

...PETITIONER

(BY SRI. JOSEPH ANILKUMAR A, ADVOCATE)

AND:

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MAHENDRAKUMAR
Location: HIGH
COURT OF
KARNATAKA

1. STATE OF KARNATAKA
POLICE STATION SHIVAJI NAGAR,

EAST ZONE WOMEN POLICE STATION,
BANGALORE, REP. BY ITS
STATE PUBLIC PROSECUTOR,
HIGH COURT COMPLEX,
BENGALURU-560 001.
2. SMT HINA SAXENA

AGED ABOUT 33 YEARS,
W/O HARSH GAURAV SAXENA,
NO.1113, SUMMER C BLOCK,
SHILPITHA SUN FLOWER, BOREWELL ROAD,
WHITEFIELD, BANGALORE-560 066.

...RESPONDENTS

(BY SRI VENKATSATYANARAYAN A, HCGP FOR R1;
SRI SAKET M BISANI, ADVOCATE FOR R2)

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NC: 2023:KHC:44033

CRL.P No. 6389 of 2023

C/W CRL.P No. 3712 of 2022

THIS CRIMINAL PETITION IS FILED UNDER SECTION 482 OF
THE CODE OF CRIMINAL PROCEDURE, 1973 PRAYING TO QUASH
ANNEXURE-B THE CHARGE SHEET FILED IN C.C.NO.32667/2021 FOR
THE ALLEGED OFFENCE P/U/S 498A, 377, 354, 354(A), 323, 504,
506 R/W 34 OF IPC R/W SEC.3 AND 4 OF D.P ACT PENDING
CONSIDERATION ON THE FILE OF HONBLE VI A.C.M.M, COURT AT
BENGALURU AND ETC.

IN CRIMINAL PETITION NO. 3712 OF 2022:

BETWEEN:

1. VISHAL GAURAV SAXENA
S/O LATE AJAY PRAKASH,
AGED ABOUT 40 YEARS.
2. SHIVANGI SAXENA
AGED ABOUT 38 YEARS,
W/O VISHAL GAURAV SAXENA,

BOTH ARE R/AT SECTOR D ALIGANJPURANIYA,
CHAURAHA MM282,LUCKNOW,
UTTAR ARADESH-226 024.

...PETITIONERS

(BY SRI. JOSEPH ANILKUMAR A, ADVOCATE)

AND:

1. STATE OF KARNATAKA
POLICE STATION SHIVAJI NAGAR,
EAST ZONE WOMEN POLICE STATION,
BENGALURU,
REP BY ITS STATE PUBLIC PROSECUTOR,
HIGH COURT COMPLEX,
BENGALURU 560 001.
2. SMT. HINA SAXENA
W/O HARSHA GAURAV SAXENA

AGED ABOUT 33 YEARS,
NO.1113, SUMMER C BLOCK,
SHILPITHA SUN FLOWER, BOREWELL ROAD,
WHITEFIELD, BENGALURU-560 066.

...RESPONDENTS

(BY SRI VENKATSATYANARAYAN A, HCGP FOR R1;
SRI SAKET M BISANI, ADVOCATE FOR R2)

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NC: 2023:KHC:44033
CRL.P No. 6389 of 2023
C/W CRL.P No. 3712 of 2022

THIS CRIMINAL PETITION IS FILED UNDER SECTION 482 OF
THE CODE OF CRIMINAL PROCEDURE, 1973 PRAYING TO QUASH
ANNEXURE A THE CHARGE SHEET AND FURTHER PROCEEDINGS IN
C.C.NO.32667/2021 PENDING ON THE FILE OF THE HONBLE VI
A.C.M.M COURT AT BENGALURU AGAINST THESE PETITIONERS AND
ETC.

THESE PETITIONS, COMING ON FOR REPORTING
SETTLEMENT, THIS DAY, THE COURT MADE THE FOLLOWING:

ORDER

The petitioners in these petitions are sought to be prosecuted for the offences punishable under Sections 498(A), 377, 354, 354(A), 323, 504, 506 read with Section 34 of IPC and Sections 3, 4 of D P Act.

2. The case of the prosecution is that the petitioners subjected the respondent No.2 to cruelty both mentally and physically and demanded to bring money from the parental home.

3. The parties are present before this Court.

4. The petitioner in Crl.P No.6389/2023 has annexed the memorandum of settlement under Section 89 of CPC read with Rules 24 and 25 of the Karnataka Civil Procedure (Mediation) Rules, 2005. A perusal of the memorandum of settlement indicated that, the petitioner had filed a petition in MC No.4101/2022 under Section 13(1)(ia)(ib) of Hindu Marriage Act, 1955 for dissolution of his marriage. The matter was referred to the Mediation Center to explore the possibility of settlement. Before the Mediation Center, the parties amicably resolved the dispute among themselves, and in terms NC: 2023:KHC:44033 of the settlement, their marriage has been dissolved mutually, and the respondent No.2 has agreed to withdraw all the allegations against the petitioners, and has no objection for quashing the impugned proceeding.

5. Though the offences are cognizable and non- compoundable, however, having regard to the fact that, the parties have amicably resolved the dispute among themselves, and the respondent No.2 having agreed to withdraw all the allegations made by her, it would be a futile exercise if the

petitioners - accused are subjected to trial, since the probability of their conviction is remote and bleak in view of the settlement. Therefore, the continuation of criminal proceedings will be an abuse of the process of law. Accordingly, I pass the following:

ORDER

i) Criminal petitions are allowed.

ii) The impugned proceeding in CC No.32667/2021 pending on the file of the learned VI Addl. CMM, Bengaluru, in both the petitions, is hereby quashed.

Sd/-

JUDGE BKM